Republic of the Philippines
Civil Service Commission
Constitution Hills, Batasang Pambansa Complex, Diliman, 1126 Quezon City

100 Years of Service;
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Mamamayan Muna

GUIDELINES ON THE AVAILMENT OF THE TEN-DAY LEAVE UNDER R.A. 9262 (ANTI - VIOLENCE AGAINST WOMEN AND THEIR CHILDREN ACT OF 2004)
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RESOLUTION NO. 051206

WHEREAS, Section 11, Article II of the 1987 Constitution declares that the State values the dignity of every human person and guarantees full respect for human rights;

WHEREAS, Republic Act No. 9262, otherwise known as the "Anti-Violence Against Women and Their Children Act of 2004", reiterates this state policy for women and children as well as recognizes the need to protect the family and its members particularly women and children from violence and threats to their personal safety and security;

WHEREAS, Section 12 (2), Chapter 3, Title I (A), Book V of the Administrative Code of 1987 (Executive Order No. 292) empowers the Civil Service Commission as the central personnel agency of the government to prescribe, amend, and enforce rules and regulations for carrying into effect the provisions of the Civil Service Law and other pertinent laws;

WHEREAS, Section 39 of RA 9262 established the Inter-Agency Council on Violence Against Women and Their Children (IAC-VAWC) composed of the Department of Social Welfare and Development (DSWD); National Commission on the Role of Filipino Women (NCRFW); Civil Service Commission (CSC); Commission on Human Rights (CHR); Council for the Welfare of Children (CWC); Department of Justice (DOJ); Department of the Interior and Local Government (DILG); Philippine National Police (PNP); Department of Health (DOH); Department of Education (DepEd); Department of Labor and Employment (DOLE); and National Bureau of Investigation (NBI) to formulate programs and projects to eliminate Violence Against Women (VAW) based on their mandates, develop capability programs for their employees to become more sensitive to the needs of their clients, and serve as the monitoring body with regard to VAW initiatives;

WHEREAS, Section 43 of the said Act entitles the woman employee-victim of VAW to take a paid leave of absence up to ten (10) days in addition to other paid leaves under the Labor Code and Civil Service Rules and Regulations, extendible when necessity arises as specified in the protection order;

WHEREAS, the Implementing Rules and Regulations of RA 9262 makes it the duty of the Civil Service Commission to revise policies and regulations so as to incorporate the ten-day paid leave of absence for victim-survivor pursuant to the provisions of the law;

WHEREAS, to implement the objectives of the law, the Commission deems it fit to issue guidelines for acting on requests for availment by government employees of the ten-day paid leave of absence under the Act;

NOW, THEREFORE, the Commission hereby **RESOLVES** to adopt and prescribe the following guidelines on the availment of the ten-day paid leave of absence under Republic Act No. 9262:

1. **Definition of Violence Against Women and Their Children.** - As used in the Act, the phrase "violence against women and their children " shall refer to any act or a series of acts committed by any person against a woman who is his wife, former wife, or against a woman with whom the person has or had a sexual or dating relationship, or with whom he has a common child, or against her child whether legitimate or illegitimate, within or without the family abode, which result in or is likely to result in physical, sexual, psychological harm or suffering, or economic abuse including threats or such acts, battery, assault, coercion, harassment or arbitrary deprivation of liberty. It includes, but is not limited to, the acts enumerated in Section 3 of the Act.

2. **Who are Entitled to a Ten-Day Leave.** - The following shall be entitled to a paid leave of absence not exceeding ten (10) days, except as provided under Section 43 of RA 9262:

    a. Any woman employee in the government service regardless of employment status, who is a victim of violence as defined under Section 3 of the Act.

    b. Any woman employee whose child is a victim of violence as defined therein and whose age is below eighteen (18) or above eighteen (18) but unable to take care of himself/herself.

3. **When to File; Submission of Supporting Document.** – The application for leave shall be filed, whenever practicable, before the actual leave of absence or immediately upon the woman employee's return from such leave. It shall be accompanied by any of the following supporting documents:

    a. Barangay Protection Order (BPO) obtained from the barangay;

    b. Temporary/Permanent Protection Order (TPO/PPO) obtained from the court;

    c. If the protection order is not yet issued by the barangay or the court, a certification issued by the Punong Barangay/Kagawad or Prosecutor or the Clerk of Court that the application for the BPO, TPO or PPO has been filed with the said office shall be sufficient to support the application for the ten-day leave; or

    d. In the absence of the BPO/TPO/PPO or the certification, a police report specifying the details of the occurrence of violence on the victim and a medical certificate may be considered, at the discretion of the immediate supervisor of the woman employee concerned.

4. **Manner of Availment.** - The woman employee who applies for ten-day leave may avail of the same in a continuous or intermittent manner to cover the days that she has to attend to medical and legal concerns.

5. **Nature of Ten-Day Leave.** - It is non-cumulative and not convertible to cash. Leaves not availed of are considered waived.

6. **When Leave May Be Extended.** - When necessity arises as specified in the Protection Order, the woman employee may apply for extension and, for this purpose, use the other leave benefits provided under civil service rules and regulations.

7. **Administrative Liability.** - The official who denies the application for leave of a woman employee-victim of VAW, despite submission of the BPO/TPO/PPO, shall be held liable for conduct prejudicial to the best interest of the service.

This Resolution shall take effect after fifteen (15) days from the date of its publication in a newspaper of general circulation.

Quezon City, AUG 26 2005

KARINA CONSTANTINO-DAVID
Chairman

J. WALDEMAR V. VALMORES
Commissioner

CESAR D. BUENAFLOR
Commissioner

Attested by:

REBECCA A. FERNANDEZ
Director IV
Commission Secretariat and Liaison Office

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